

ONTARIO COURT OF JUSTICE

B E T W E E N :

HIS MAJESTY THE KING

-AND-

C.L.

Before Justice M. G. March
Heard on October 21, 23 and 31, 2024 and January 21, 2025
Reasons for Judgment released on March 20, 2025

Ms. Goher Irfan.....Counsel for the Provincial Crown
Mr. Forest Poff-Smith.....Counsel for C.L.

March, M.G., J. :

Introduction

1. C.L. stands charged that he:

- a) on October 13, 2023, committed mischief by wilfully damaging drywall without legal justification or excuse, and without colour of right, within the residence of V.L. contrary to section 430(4) of the *Criminal Code of Canada* (“the Code”),
 - b) on October 26, 2023, knowingly uttered a threat to cause death to V.L. contrary to section 264.1(1)(a) of the *Code*, and
 - c) on November 6, 2023, wounded V.L. in committing an aggravated assault upon her contrary to section 268 of the *Code*.
2. Upon arraignment at his trial on October 21, 2024, C.L. pleaded guilty to uttering the threat. By way of admission later offered through his counsel on record, he agreed that over the course of a telephone conversation on October 26, 2023, which she was having with a friend, he told her he would “bury her”.
 3. He made the threat upstairs in V.L.’s residence and she stayed on the phone because she was scared. Later, he left her residence in his vehicle in haste.
 4. C.L. went on as well to admit the jurisdiction of the Court to hear the matter, and the ability of V.L. to identify him as the accused before the Court.
 5. This case chronicles how C.L. and V.L. began a dating/intimate relationship on September 24, 2023. It ended quite badly after a night of smoking marijuana, and possibly drinking alcohol and/or a cannabis infused beverage, during the late evening of November 5 and extending into the early morning of November 6, 2023.
 6. As with so many criminal trials, the outcome of this one too will turn on an assessment of the credibility and reliability of the accounts given by C.L. and V.L.

The Relevant Evidence

V.L. :

7. When V.L. began giving her evidence on October 21, 2024, she was 37 years old. She had three daughters ranging in age from 11 to 19.

8. She was college-educated as a legal assistant but was not working at the time of her testimony.
9. She explained that she met C.L. in September 2023. Initially, they started out as friends. The relationship evolved into an intimate one.
10. She described their first couple of weeks together as “okay” and “fun”. However, their time together soon transformed into what she labelled as “toxic”. It became riddled with “anger” and “jealousy”.
11. V.L. stated that the elements of jealousy, insecurity and toxicity were not mutual. These aspects of their relationship emanated from C.L. alone. For example, C.L. had accused her of sleeping with her best friend’s husband. He would also ask to see photos on her phone.
12. Most often, V.L. explained, they would spend time together at her residence. During one incident, they engaged in an argument, and he left screaming to the neighbours that she was “sleeping with young kids”. He “peeled off” out of her driveway in his motor vehicle.
13. On another occasion, after V.L.’s memory was refreshed by referring to the statement she gave to police before C.L. was charged, she recalled a night where they were arguing again in her bedroom at her home. He was accusing her of having slept with her friend’s husband. Frustrated, she left and went downstairs.
14. She next heard a commotion upstairs in her bedroom. When she went upstairs to check, no one else was inside except C.L. She noticed there was a hole in the wall, which she had not seen before, near the window on the side of the bed where he was laying. The hole was, in her view, in the shape of a fist.
15. When V.L. asked C.L. about how it was caused, he told her that B. did it. He later claimed it may have been caused by his knee.
16. V.L. was able to see as well that C.L. was packing up his things including his dog crate.

17. They also spoke over the phone regarding what made the hole in her bedroom wall after he left.
18. V.L. took a photograph of the hole before she went to police to complain about what C.L. did to her. She was unsure of exactly when the hole was made.
19. Regarding the dates when V.L. suffered her injuries due to the fall down the stairs, Crown and defence counsel agreed to the fact that it was a Sunday evening going into the early morning hours of Monday, November 5 to 6, 2023.
20. In addressing the end of their relatively short-lived relationship on November 6, 2023, V.L. recounted that they had spent a week to ten days or so apart. Again, he had challenged her on having been with “someone else” leading up to their decision to take a break. She asserted that she had not been. She had been at home watching Halloween movies with one of her daughters.
21. V.L. explained that one of the last times that he had been at her place, her dog had chewed his sandals. She replaced them and offered to drop them off at his residence.
22. She believed that she had arrived around 7 or 8 PM. He was home. They were getting along well over the course of the evening. They were smoking marijuana together and shared perhaps a gram of “bong tokes”. According to her, they did not use any other intoxicating substances that night.
23. They decided to retire to bed around 11 PM or midnight. At some later point, they began engaging in sexual activity. As she put it, “she went to go down on him”. He then told her he had been with another woman. She brought up “Hailey”.
24. In response, he turned on the lights and told her to get out. She believed it was around 3 or 4 AM when this occurred.
25. He grabbed her by her ankles before pulling her out of bed because she was not moving fast enough. She then got up and dressed herself. When she was outside, she realized that she had forgotten her “weed”. She left it in his bathroom.

26. She explained that as one enters the building where C.L.'s apartment is, there are individual doors to three separate units. His was directly ahead as one passes through the front door. Inside his apartment, the bathroom was straight ahead; his room was to the left, and to the right, was his kitchen and living room area.
27. She proceeded inside and went to get her marijuana. As she tried to retrieve it, he dumped it on the floor.
28. In response, she took his jar of marijuana and threw it into the shower behind him. She then turned to walk out.
29. Next, she felt him kick her in the back. Her feet came off the ground. She was knocked out and landed at the bottom of the stairs.
30. She estimated that from the bathroom to the top of the stairs, one would traverse approximately 10 feet.
31. When she regained consciousness and opened her eyes, he was above her at the top of the stairs. She screamed at him, "You almost killed me."
32. He told her to shut her mouth and he turned off the lights. He was complaining that his neighbours have kids. He wanted her to come back to his unit.
33. She was kicking him to keep him away from her. Eventually, she was able to gather her stuff which had scattered all over the floor. Specifically, she picked up her purse and the things that fell out of it, as well as a small duffel bag.
34. She had trouble breathing and could barely sit when she entered her vehicle. A while later, she stopped at the side of the road for approximately 20 to 25 minutes and was texting with him.
35. She had a few conversations with C.L. as well. He tried to persuade her she tripped and fell. She asked him what he meant. She was incredulous at the suggestion. She then asked him, "Are you fucking serious? You did this to me." He responded that he was sorry.

36. Next, she called one of her friends, S.S.L. to tell him what had occurred. She was panicking and in hysterics. He did not come to help her, but he did visit her afterwards.
37. At home, she laid in bed and took some painkillers. She had a ‘goose egg’ type mark on her forehead. Her back was hurting, in particular her tailbone and her “butt”. She could neither sit nor drive. Eventually, she took pictures of the injuries she suffered. Other photographs of her injuries later taken by police were tendered on consent as Exhibit No. 2 at trial.
38. Roughly three to five days after her fall down the stairs, she met with C.L. and he gave her a bucket containing medications, bath salts, candles, and other various items to make her feel better. On the bucket, he had written words such as “beautiful”, “baby”, and “drop dead gorgeous”. The last descriptor, which her daughter first noticed, made V.L. feel uncomfortable.
39. There was a letter in the bucket as well. In the letter, he apologized to her and told her he would try to do better.
40. On her birthday, November 16, 2023, she had people over to her place, but she ended up going to bed early because she was in such pain.
41. She believed that she went to the hospital some ten days after the fact on November 17, 2023. She learned that she had an L1 spinal fracture after she had x-rays. She sent to C.L. a picture of the x-ray depicting the fracture.
42. When she was asked by the health care professionals about the cause of her injuries, she told them that she fell. She added that whenever the pain would flare in her back, it would make her feel nauseous and sick. It was not until January 2024 that she was able to resume normal activities and to sit properly again.
43. As an exception to the hearsay rule, and under authority of *Ares v. Venner*, 1970 CanLII 5 (S.C.C.), all of V.L.’s medical records regarding her visits to the hospital to seek treatment for her injuries were filed as Exhibit No. 6 at trial and were admitted into

evidence as ‘prima facie’ proof of the truth of their contents, on consent of both Crown and defence.

44. The medical records established that V.L. actually went to the Emergency Department of the Arnprior and District Memorial Hospital on November 14, 2023, not November 17, 2023, as she had thought. She presented with pain in her mid to lower back radiating to the buttocks. She developed a bruise in her buttock region. She was not walking well. Her pain worsened with movement. She gauged it at a 6 to 7 out of 10.
45. She returned to the hospital and was x-rayed on November 15, 2023. That same day, her attending radiologist diagnosed an L1 mild vertebral, compression fracture in her back.
46. According to the radiologist, the L1 anterior endplate fracture caused a 20% percent loss of vertebral height. There was no evidence misalignment and no sign of thoracic vertebral or pelvic fracture upon his examination of her x-rays.
47. The medical staff advised her that it was “safe” and would heal on its own. The pain would gradually subside. It was important for her to stay active. She could take Tylenol or Advil as needed for pain. She was to follow up with her family doctor.
48. V.L. claimed she had a concussion from her fall down the stairs as well, but she did not know whether it was documented in her “paperwork”.
49. She explained that C.L. and she had been texting continuously. He said he was going to see a doctor. He ended up not seeking counselling of any sort.
50. Over time, V.L. reached out to his “baby mother” to find out if he had been violent with her too. V.L. added that they had exchanged copious texts about their relationship and her fall down the stairs, but only some of them were handed over to police and referred to her by counsel at trial.
51. When she received the results of her x-rays from the hospital, she explained that she was angry, upset, and mad. She called C.L. a coward. She told him she was considering going to the police.

52. In one of their text exchanges, she asked him if he had been “hanging out with Hailey”. She knew he was talking to other women. Whenever she inquired why, as she put it, “he was all over the place”. She believed he was cheating on her.
53. Under cross-examination, V.L. confirmed that she had first contended that jealousy in her relationship with C.L. was a “one way street”. It was solely his affliction, not hers. Indeed, she denied that she was jealous about Hailey.
54. She quickly conceded however that there were times when she was jealous as well. It may not have been always him. When he brought up other women in their conversations, she felt vulnerable.
55. When pressed on the point by defence counsel, she readily agreed that it was not a “one-way street”. As she put it, “Let’s save time.”
56. Regarding the hole in the wall, she did not deny that she could not remember the incident while providing her evidence-in-chief. She needed to be referred to a transcript of her statement given to police.
57. She complained that during that stage of the relationship, C.L. had a job but he stopped going to work. He would stay in bed until 1 or 2 PM. He did not like her going out and socializing with her friends and doing things with them. He was with her “24/7”. During the first part of their relationship, she explained, he was always around her.
58. When challenged about her use of cocaine, she acknowledged that she was “in a bad point in her life”. She reluctantly acknowledged that S.S.L. was her “coke dealer”. She was quick to add that he was C.L.’s “coke dealer” as well.
59. She believed that the hole in the wall and C.L. peeling out of her driveway was one transaction. She thought those incidents occurred in sequence with the damage happening first. However, she agreed she was doing drugs and drinking at the time almost daily.
60. As she put it, “The hole in the wall is not why we’re here.”

61. She maintained that she was “kicked down the stairs”. She vehemently asserted that she knew what happened. She offered that she was motivated in coming to Court to testify against C.L. because she was “worried about other women”.
62. In discussing the mechanics of how the damage was done to her bedroom wall, V.L. agreed that C.L. is tall. He is over six feet. The hole was three to four inches beneath the window sill on the side of the bed where he normally slept. Notwithstanding, she maintained that it was still simple for him to punch the wall there. She doubted it was caused by his knee.
63. When shown a photograph of the damage, she maintained that you could see where the knuckles of his hand went in. His knee is rounder.
64. She stated that she was “not too concerned about that” in reference to the hole in the wall. She was more concerned with her L1 fracture, being knocked out and concussed. She denied that an alternative cause for her injuries was an ATV accident she was involved in a few weeks prior to her fall down the stairs at C.L.’s residence.
65. She allowed for the possibility that her lack of clarity, in remembering with precision everything that had happened in their past, may be attributable to a degree by her concussion.
66. She conceded that she lied to the doctor about bumping her head on the ceiling and falling down the stairs. She had no explanation for why it was recorded in her medical records that she was “able to get in and out of bed” and “walk without difficulty”. She offered that she said what she said to the health care professionals because, at that point in time, she was not sure whether she wished to go to the police or not. She was still hoping that C.L. and she would get back together, and he would get help.
67. She went on to describe her relationship with C.L. as a “trauma bond”. She agreed that over the course of their text exchanges, she told him that he could “sit and wonder when they [the police] were coming for you”.

68. Regarding the injuries to her back and head, she recounted that she went to his house to drop off the shoes she was replacing for him. They were going to talk. She thought it was early in the evening, roughly 7 or 8 PM.
69. They were both smoking “weed”. She denied that they drank vodka seltzers, but she added that C.L. consumed alcohol every day. She conceded that she drank a lot too, but not daily.
70. Specifically, she recalled that she was smoking out of a bong with him before bed. They were not fighting. In bed, he wanted to have sex. She felt something on him. She saw something she thought may be a symptom of an “STD”. She reconsidered her decision to perform oral sex on him as a result. She was concerned about him sleeping with other women and catching something from him.
71. Again, she confirmed, she was worried about him being with other women. She was jealous. She was frustrated as well. He was accusing her of doing things with other men when she had not. He had been asking her all kinds of questions about a “Roney” concert she had recently attended.
72. When she declined having sex with him, he began suggesting that she was not attracted to him. He grew angry and pulled her out of the bed. She agreed that she had told police nothing in her statement about C.L. pulling her by her ankles, nor that their physical altercation started over her refusal to have sex. She offered that it was a “traumatic experience”. She tried to block it out.
73. She agreed that she was angry when he dumped her “weed” out. She explained that he was smoking her marijuana, using her motor vehicle and eating her food. He told her he had a lot of money. It turned out he had none.
74. He also made a comment that night about Hailey. He stated that he should have gone to see her in Kingston. V.L. concluded that they were having a good time until he did not get what he wanted.

75. V.L. could not remember whether there was any yelling the first time she left his apartment. She got to her car and realized she forgot her “weed”. She went back and he unlocked the door for her. They walked up the stairs together.
76. She recalled that she left her “bud buster” in his bathroom. When he dumped it out, she threw his marijuana in the shower in retaliation. She denied that he was saying anything to her regarding her marijuana to the effect of she should not be smoking and driving.
77. She clarified that the lid to her grinder was what she grabbed and collected. She was adamant that she did not walk down the stairs a second time. She was kicked down them.
78. She disagreed that she made any attempt to get past C.L. while he was blocking her on the stairs up to his unit. She denied that her feet were wet. She did not slip on the stairs, she stated.
79. When presented with a photograph of the stairs, she was challenged on the unlikelihood that she could have hit the bulwark above the staircase inside C.L.’s apartment, but she maintained that she did. She did “fly that far”. She is smaller than he is. She vehemently disagreed that she simply fell and hurt herself.
80. She conceded that she did not provide the entire text exchange which she had with C.L. following the incident. She offered that the police asked her for anything pertaining to the case, but she questioned why she would give the officer the text where he denied what he did. She characterized that material as “useless information”. Nevertheless, she confirmed that C.L. had told her over text that she had tripped and fallen.
81. Further, she eventually agreed that he never texted to her any acknowledgement that he had kicked her down the stairs. She further conceded that she provided police with texts of C.L. apologizing to her, but no texts from him explaining why he was apologizing to her.
82. V.L. asserted that she only gave texts to the police as proof of what happened. The officer told her to give anything “that helps”.

83. She reaffirmed that he did tell her not to go to the police.
84. In explaining her lie to the doctor about falling, as opposed to being kicked in the back which was the truth, she offered that she was “in love with this man, protecting him [C.L.]”.
85. She reutilized the term “trauma bond” to describe her relationship with C.L. She had been single for three and a half years prior to meeting him.
86. In the aftermath of her tumble down the stairs, V.L. offered that she was “scared and hurt”. She could not breathe. He then covered her mouth and turned off the lights. He told her in doing so, “There’s other people who live here.”
87. She explained that C.L. was trying to persuade her she slipped. She responded, “You kicked me.” She was angry. She was experiencing a swirl of emotions.
88. She acknowledged sending texts to C.L. threatening that if she had not had someone else in her vehicle with her while driving when she saw him in his vehicle, she would have swerved to hit him.
89. She denied that she told C.L. that she wanted to ruin his life. She was then shown a text by defence counsel that she sent to him wherein she stated, “I hate you. I’m going to ruin your life.”
90. She agreed that she must have sent the text. She explained that at points her pain was so excruciating that she wanted him to experience the same thing.
91. Later she commented that, while both C.L. and she were using drugs and alcohol, they both said mean things to one another. When she messaged to him, “Just wait”, she meant that “karma” was going to come around to him.
92. She wanted people to know what he was really like. She wanted him to know that is not “okay for him to beat women”. She made up her mind that she was going to the police to do things the proper way. Indeed, in one of her texts, she told him that she would “[fuck] his whole life” and “Hope you got some money saved for lawyers.”

93. She did not deny that she was angry and frustrated. She wanted him “reprimanded” for what he did. She wanted the Court to make him “go through anger management”.
94. In essence, she wanted everyone to know what he did to her. That was her right. She wanted people to know what type of person he is. She texted to him that she was going to “[post] it in the Renfrew dating site”, and further that she was “going to the cops”. In another text, she stated, “You can run. But you can’t hide. You fucked with the wrong girl now.”
95. She disagreed that she was being vengeful or trying to get even. She maintained that C.L. is “not a nice person”.
96. When confronted that he did not make a hole in her wall, nor did he push her down the stairs, she firmly maintained that he did both.
97. In revisiting the physics of her fall, V.L. stated that she believed she hit her head on the bulkhead at the top of the stairwell inside C.L.’s apartment. She was then “knocked unconscious”. She was awake as she approached the stairs, lost consciousness, and came to at the bottom of them. In truth, she did not remember hitting her head.
98. She was then referred to a portion of her statement to police where the officer suggested to her that she had hit her head “like on the bulkhead”, and she agreed that she had. She responded, “Yeah, I smoked my head on it and it knocked me out.”
99. As V.L. put it during cross-examination, “I’m assuming I hit my head there.” She had suffered trauma. She was in shock.
100. She pointed out that C.L. had to “duck” in order to walk down the stairs.
101. In reality, what V.L. was actually able to remember was getting kicked, arching her back, and waking up at the bottom of the stairs. She reckoned that she was “out when [she] hit [her] head”. She did not know where she had hit her head. Likely, she figured, it was on the bulkhead.

102. She recounted that she turned and walked away from C.L. in the bathroom. She took perhaps a few steps. She felt the pressure on her back. She was ten feet or maybe less from the top of the stairs when this occurred. She allowed that it could have been as little as six to seven feet away from the top of the stairwell to the bathroom door of his apartment.
103. V.L. was shown a video taken by C.L. of the layout of his apartment. She agreed that the exact measurement of the bathroom door to the top of the stairs was 13 and a half feet. She confirmed that from the point where she was kicked and started to fall was roughly the same 13 and a half feet distance, which she must have traversed to even be able to fall down the stairs.
104. As a general proposition, V.L. agreed that memory worsens over time. She could only say at this point that she figured it was the bulkhead against which she had hit her head. When she gave her statement to police on November 17, 2023, she indeed agreed with that suggestion put to her by the interviewing officer.
105. On the quality of her memory, she surmised that she did the best she could in trying to remember things as they occurred.
106. Under re-examination, V.L. reiterated that C.L. and she had not seen each other for roughly a week and a half before her fall down the stairs. She was still hoping that there would be a possibility for reconciliation.
107. She clarified the timeline of going to the hospital and receiving the results of her x-rays the next day, and finally deciding to go to the police on November 17, 2023.
108. She explained her reluctance in going to the authorities in not wanting to be labelled a “cop caller”. However, she was getting no help in turning to his parents and in trying to persuade him to go to counselling. She wanted him to do anger management.
109. She added that that is why she reached out to his friend, Chris, in an attempt to put some sense in C.L.’s head. C.L. was not happy about her decision to do so. Still, it was clear to V.L. that he was not going to seek help for himself.

110. She acknowledged that she was upset about him “bashing” her and telling everyone she was not at nice person. Meanwhile, he had his own demons in his closet.
111. When the trial resumed on October 31, 2024, Crown and defence counsel advised the Court of an Agreed Statement of Facts negotiated between them and later filed on consent as Exhibit 16 at trial. The defence admitted that V.L. called her friend, S.S.L. at 4 AM on November 6, 2023. She was crying and said to him that C.L. had kicked her down the stairs. Later that day, S.S.L. came to see her and observed her injuries. S.S.L. observed that her walking was “not right”. The Crown then closed its case.

C.L.:

112. When C.L. began giving his evidence on October 31, 2024, he was 29 years old. He denied that he:
- a) punched a hole in V.L.’s bedroom wall,
 - b) caused, in any way, such damage,
 - c) kicked her down the stairs, or
 - d) pushed her down the stairs.
113. C.L. confirmed that he had an eight-year-old son, J., with whom he had access every second weekend.
114. He also indicated that he was in a new relationship with T.M. and had been for the past eight months.
115. In terms of education, he stated that he graduated from high school in Renfrew. Thereafter, he went to college in Kingston to become a wind turbine technician,/electrician. He used to work at various places in Ottawa including with the National Capital Commission, the RCMP, and on Parliament Hill, but he lost that employment because of background checks conducted into his past, which uncovered his outstanding charges and their nature.

116. Prior to having been arrested in November 2023, C.L. had no brushes with the criminal justice system.
117. He confirmed that he was in an intimate relationship with V.L. in September 2023. It ended less than two months later. In the course of their short period as a couple, they broke up at least three times. He characterized the relationship as “on again, off again”.
118. He acknowledged how he was jealous during the relationship. He asserted she was too. He recognized that he needed help with his depression, which he attributed to his lack of work and to “get back on [his] feet”.
119. Regarding the alleged mischief offence, he stated that he told V.L. immediately about the hole in the wall. They had been arguing beforehand. He remained in her bedroom after she went downstairs. Her clothing was everywhere. He was trying to keep himself busy and distracted. He does not like clutter. He was picking up plates. He has a peanut allergy and he wanted to be sure that there was nothing containing peanuts left on the plates. While tidying up, he opened a window blind and noticed the hole.
120. He explained that the blind on that window had never been opened on any prior occasion when he was in her bedroom, whereas the one for the other window had been.
121. The minute V.L. reappeared in her bedroom, she accused him of punching the wall and creating the hole.
122. Although there was one occasion where he “burned” out of her driveway, it was not that day.
123. In preparation for his trial, he laid a measuring tape on the floor of his former apartment to calculate the distance from the bathroom to the top of the stairs. The span was roughly 13 feet. He measured a further 82 inches from the top of the stairs to the bulkhead under which one must pass to exit the apartment.
124. He added that there was laminate flooring on the stairs, which became slippery when wet.

125. In respect of the alleged aggravated assault upon V.L., C.L. confirmed that he photographed the interior of the apartment he occupied during the time he was seeing her. He also commented on the layout of his apartment in the video he had made of its interior [Exhibit 19], which defence counsel played for the Court's benefit.
126. His recollection was that on November 5 going into November 6, 2023, she came to his place to talk about the state of their relationship. He indicated that she arrived around 10 PM. They talked and shared a couple of beverages. They were hard seltzers, a "weed drink". He explained that the drinks were infused with THC. Each contained 10 mg of the intoxicant derived from marijuana. He described it as the most potent of this type of beverage one can buy from a dispensary.
127. In addition, they each had two bong loads of weed, which they smoked. He estimated the consumption of the marijuana to have spanned 10 PM on November 5, 2023 to 2:30 AM on November 6, 2023.
128. He confirmed that they did argue about Hailey. He admitted to V.L. that he had reached out to her to ask how she was doing. This angered V.L. She accused him of sleeping with Hailey and other women. V.L. called him a cheater, a liar and a deadbeat dad. The argument erupted, he thought, around 3 AM.
129. He asked V.L. to keep her voice down. She was not yelling, but she was talking quite loudly. The building in which he lived contained three apartments. He was concerned about his neighbours overhearing them and awakening.
130. When she did not calm herself, he asked her to please leave. He confirmed that he did kick her out. In fact, he told her to "get the fuck out". To remove her, he grabbed her by the ankles and pulled her out of bed.
131. Thereafter, she grabbed her things in haste and left. All the while, she was telling him that she "hated" him and that he was "a loser". As she exited his building, he followed her and locked the front door.

132. He believed that she went to her vehicle, but she returned. He let her back inside. She went back upstairs to retrieve her marijuana she had left there. She picked up his weed jar and threw it at him. In retaliation, he took her buster and dumped it down the sink in the bathroom. He added that she was intoxicated. He too was feeling the effects of the marijuana. He told her he was “not letting [her] drive home with weed in her buster”. She grabbed it from him and began to leave again. He followed her.
133. She made it to the ground floor, but then tried to go back upstairs. He told her again she had to leave. He put his hand on the rail of the staircase. He told her she was not getting by him.
134. He was backing up as she pushed against him, body against body, in the stairwell. She was trying to get past him. She made it up four steps forcing herself against him. She wanted to retrieve the other half of her marijuana buster.
135. He had his hands outstretched against the railing of the wall and the staircase. She was ducking under and trying to squeeze past him. He remained above her.
136. He then saw that one of her feet slipped on the stairs and she fell. She hit her head on the door frame. She landed on her back.
137. He went to the bottom of the stairs to see if she was okay. He denied covering her mouth or plugging her nose.
138. In anger, she was calling him a “fucking loser”. She told him she was going to ruin his life. She said he was a “woman beater”.
139. He explained that when she finally left, he noticed the stairs were wet and full of sand. He added that, as you leave the building where his apartment was located, there is gravel and grass patches everywhere. He surmised that she had tracked the water and sand back into his house after she had left and returned.
140. He agreed that he was apologizing in his texts to her for what had happened and how she got hurt. He denied that he had done anything wrong. He just felt sorry for her. He was not apologizing for kicking her down the stairs.

141. He hated himself because he could have let her up the stairs. If he had simply let her go by him, she would not have fallen. Specifically, in some of the texts he sent to her, he told her he “didn’t kick her”, and “I don’t beat.”
142. After a while, he stopped denying that he caused her to fall down the stairs because he felt sorry that she got hurt, and he was not wanting to instigate her.
143. When asked by defence counsel about why he would have texted to her that she had hit her head on the top of the stairs, he offered that his head was going a million miles a minute. He could not put words together. In any event, he is a terrible texter. He meant that she had hit her head on the side of the door frame.
144. He did give her a “get well” bucket because he was sorry for what had happened. He loved her. He wanted to make her feel better.
145. Under cross-examination, C.L. confirmed that his relationship with V.L. was “difficult”, and “not a great [one]”. They did not always get along, nor see eye to eye. The primary reasons he identified for their troubles was jealousy and not trusting one another.
146. He believed the occasion when he “burned out” of her driveway was not the same time as when he noticed the hole in the wall. He estimated the latter event happened two to three weeks into October 2023. An argument erupted that day about how they are “different people”. The former incident happened near the beginning of October 2023.
147. He seemed to recall that the first breakup occurred during that first week of October 2023 after they had been arguing for about ten minutes. They were not really talking. He was yelling and screaming at her. She reciprocated. It was at this time that he threatened her. She asked him to leave. He did and took his dog crate with him.
148. The theme of their arguments was mostly about seeing other people. Their relationship was indeed “toxic”. There was always something every week. He was nevertheless certain that the “burnout” was not related to the hole, nor the threat he made to V.L.
149. Before he noticed the hole in her bedroom wall, they had been arguing one morning. She got angry at him, left, and went downstairs. She would not talk to him. He was

disappointed that they could not talk things out. Candidly, he admitted he could not remember what the argument was even about.

150. After she left and he looked around, he could see that the room was “just a disaster”. He began cleaning it to keep himself occupied. He denied that he noticed the clutter the night before, or that he was throwing things around the room in anger and frustration. He conceded that this was the first time he had ever cleaned her bedroom.
151. He stated that he called V.L. up to show her what he had discovered. He agreed that her reaction was as though she had never seen the hole before. Nevertheless, he steadfastly denied that he punched it in the wall.
152. In trying to piece together a timeline, he thought that he noticed the hole in the wall about a week into October. A week later he performed the “burnout” in her driveway. Then, V.L.’s November 6, 2023 fall down the stairs of his apartment occurred after their decision to stay apart for roughly two weeks.
153. In revisiting the night of the fall, he testified that she came over around 10 PM. They had a couple of seltzers which he supplied. She was the one who brought “the weed drink”.
154. Neither of them fell asleep before they started arguing. They went to bed at approximately 2:30 AM.
155. The argument started because she brought up Hailey. C.L. admitted to V.L. that he had reached out to Hailey a couple of days earlier. Their dispute then centered mostly around him sleeping with other women and being with Hailey. There was no let up and no sleep. Around 3:45 or 4 AM, he told V.L. she had to leave.
156. He agreed that V.L. told him why she came back after she had initially left his apartment. She forgot her weed buster. He also conceded that her weed in the buster was not in a consumable form. It would have to be rolled in a paper or put into a smoking device to be ingested.

157. He confirmed it was true that he did not want her in his house. He disagreed that the reason he was not concerned about her driving was because she was not intoxicated. He stated that the sequence was he brought her duffel bag for her and followed her down when she left. She then went back upstairs in his apartment to get her buster. He then told her she was not to drive with marijuana in her car.
158. He thought that the last time they had smoked marijuana was out of the bong around 2:30 AM, right before they went to bed. In the next hour or hour and a half thereafter, they did not consume any intoxicants.
159. He maintained that his act of throwing her weed out was preventive. He did not want her making a bad choice with access to it. He knew this made her angry. He admitted that he was mad too. He surmised that this is why she grabbed his jar of weed and threw it. It first struck him in the thigh and landed in the bathtub. He conceded that he dumped her weed first before she threw his.
160. They exchanged words while they were still in the bathroom, but there was no talking as she proceeded down the stairs and left. He locked the door behind her.
161. He reckoned that she realized the other half of her buster was still inside his bathroom. That is why she returned. She told him she forgot it. She asked to be permitted inside to retrieve it. He told her she was not coming in. He would bring it to her tomorrow.
162. In terms of their relative statures, he stated that he is about 6 feet tall. She is about 5'2".
163. He confirmed there was a lot of storming up and down the stairs when people were trying to sleep, but he denied they were yelling. He agreed they were loud. Yet no one complained about the noise that night.
164. When she came back to his apartment, he stated that she was standing in the doorway of the front entrance. He could not lock it. He then began backing inside without letting her up the stairs. He conceded that in doing so, he was towering over her, but he maintained that he was walking backwards while she was trying to walk past him. He was not going to use physical force to stop her.

165. She was not listening to him. He maintained that she could come pick up the other half of her buster the next day or he could drop it off to her. By the fifth step upward in the stairwell toward his apartment, he stopped moving backwards.
166. He stated that, in trying to get around him or by him, she lost her balance and slipped. She had been facing him. As she lost her footing, she turned and hit her head on the side of the door frame.
167. He conceded that he had texted to her something different a few hours earlier. Then he had told her she hit her head at the top of the stairs. He did not really know why he originally told her that was what happened. He lamented that he is a terrible texter.
168. He gave evidence that he took it seriously what she said about ruining his life. He was worried. He had no idea she would reach out to people to tell them what he had done to her, nor that she would go to the police.
169. Regarding the moisture and sand on the steps of the stairwell, he stated that he is a “pretty clean guy”. There were other occasions when he would see the stairs in such condition after he brought in groceries. Usually, his steps would not be like that.
170. When he went back upstairs, he was still texting V.L. to make sure she was okay. He told her she should not be driving. He was upset and sorry about what had just happened. She was his girlfriend. He loved her. He just saw her fall down the stairs.
171. He vehemently disagreed that he apologized to her because he caused her to fall. He denied that he kicked her.
172. She did not get the other half of her buster from him after she fell. She left without it.
173. In terms of his consumption that night, he remembered that he had four seltzers, a weed drink and two bong tokes. He agreed he would not have driven that night.
174. Upon reflecting on their arguments in the past, C.L. acknowledged that they were common, but not always explosive. They went back-and-forth at each other. They could become loud and angry. For one of them, he did do a “burnout” and did utter a threat to

bury her. In so doing, he agreed that he was disappointed in the direction the relationship was taking and how things were going. He was not in the right frame of mind, and he lost control.

175. Nevertheless, he denied that this was the same trajectory his anger had taken him the night of November 5 going into November 6, 2023. He had not lost control. He simply did not want her to drive with weed in her system.

176. He confirmed that he let her “grab her stuff” the first time she left, but she was not listening when she returned. She got loud and angry. He was upset with the whole situation. He agreed that she likely was not happy about getting kicked out at 4 AM.

177. He denied that he was yelling, but he was perhaps at times loud too. He was frustrated that she kept coming in and out. He had neighbours. He conceded readily that it would have been better to allow her to get her grinder back, so she could leave.

178. She had told him words to the effect of:

“Let me just grab my fucking things and I’ll be out of your life for good.”

179. She made it clear to him that she considered the relationship to be over. He was the one trying to call her after she left.

180. He stated that after she fell, he offered to call somebody to arrange a ride home for her. Of course, this was some time after he told her to get the fuck out.

181. He agreed that in one of his texts to her he said, “I’m sorry, what just happened?” Her response was to the effect of:

“Fuck you. I’m gonna ruin you, you piece of shit.”

182. She maintained that he had pushed her or kicked her over the course of their discussions thereafter. Furthermore, he admitted that at the bottom of the stairs, she called him a “woman beater”. He allowed for the possibility though that she may have told him then as well that he kicked her down the stairs. He did not really remember.

183. He agreed with V.L.'s testimony that they did meet twice after the incident. He also confirmed that there was a multitude of texts exchanged after November 6, 2023. If they were all printed off, he reckoned they would amount to a stack two to three inches high.
184. He also agreed that V.L. warned him that she would speak to his mother and to others. Indeed, in one of her texts to him on November 8, 2023, she was speaking of how she wanted to ask "some of your other exs if you ever put your hands on them . . . cause you have mentally fucked me up", to which he responded, "I'm sorry . . . I hate myself . . . This is my fucking fault; I did this." When challenged by Crown counsel that he was apologizing for the injuries he caused to V.L., C.L. responded that he was only attempting to communicate that he was sorry for not just letting her by him to get up the stairs, and he was empathizing because she was hurt from falling down the stairs.
185. In the letter that he sent in the bucket, he wrote "I miss you so fucking much. I wish I never fucked this up . . . I hate myself so god damn much." When cross-examined by Crown counsel about what he meant, he reiterated that the incident could have been avoided if he had just let her go by him. He agreed he did not use the word, "accident", to describe what happened. Still, he felt bad for her. She was his girlfriend. He loved her.
186. He conceded that he was scared when she told his friend Chris about what had happened. His friend was mad at him and told him to "smarten up". He interpreted this to mean that his friend was speaking to him about getting help for his depression.
187. He testified he was also reluctant to engage V.L. and to make matters worse. He agreed that he did not confront V.L., correct her and tell her squarely when he stated on November 8, 2023 as well that he needed "to get help". He was only addressing his poor mental state again. He was just listening and not trying to anger her.
188. However, he claimed that over the telephone, he told her she had fallen and insisted to her that it was an accident. He just did not do so via text.

189. He denied that by telling her he hated himself, he was speaking of having kicked her down the stairs. He contributed to or created the situation for her fall down the stairs. He was disappointed in himself because he could have let her walk on up.
190. After she had been to the hospital and received her diagnosis, V.L. texted him to say, “You fractured my spine. You’re actually a piece of fucking shit. Can’t even answer your phone. You’re a coward. I can’t fucking believe you. Figures. You have nothing to say now. Ehhhhhh. Fucking coward.” In response, C.L. asked, “Then you threaten me?” He insisted that with this question, he was asking if she intended to ruin him. He disagreed that correcting her about having fallen and not being kicked could have helped clarify what happened.
191. V.L. followed up by texting him. “All I said was wait till the cops come and you answer to them. Don’t talk about the threat. You threaten to bury me alive. 2 weeks later kick me down the stairs.” By way of reply, C.L. texted to her, “Can you answer me?” He then texted to her two crying emojis. His next text stated, “I’m fucking sorry you know that [crying emoji, crying emoji] this is killing me [crying emoji]”.
192. He testified that he used the crying emojis because he saw his girlfriend fall down the stairs. Again, he disagreed that he kicked her down the stairs. He conceded that he was also not correcting her and telling her she had fallen.
193. Later, she texted to him, “Well I’m sorry but I don’t know what else to do. I’m freaking out. I feel crippled. I have to wait 6 - 8 weeks to feel better. I puke from the pain. Like I don’t even know what was going through your head to do this. Like I don’t know to go to the cops or what. Your mom asked me if I did.” In response, C.L. stated “I know she said that. I wouldn’t be able to see [his child’s name] ever definitely [crying emoji][crying emoji]”. When challenged by Crown counsel about this exchange, he agreed he did not confront V.L. and correct her. He thought that because of what she was prepared to say to the police, he would not be able to see his child again.
194. When V.L. then asked him, “Well what am I supposed to do. I don’t know. I’m so angry. I hate how men do this to women and get away with it.”, His response to her

was, “You say you won’t do this to me [crying emoji][crying emoji]. I’m sorry babe I know you are angry. I know you hate me I hate myself a lot [crying emoji]. I love you [crying emoji][crying emoji].” When confronted by Crown counsel that he was agreeing to V.L.’s statement about men getting away with it, he disagreed that this was his intention. He did not kick her down the stairs. When he told her he was “sorry for all of this” in his next text to her, he was expressing his remorse for watching his girlfriend fall down the stairs.

195. Further, when he stated, “I hate myself so much. I’m so fucking frustrated and disappointed with me. I’m really depressed about what I’ve been like. [crying emoji] I’m sorry beautiful”, he disagreed that he was apologizing for causing her to fall down the stairs. He maintained that she slipped and fell.
196. When V.L. texted to him “Like I don’t even know what to do next.”, C.L. answered, “I know babe I’m in so much shit. [crying emoji][crying emoji]”. C.L. denied that his response was in reference to what would occur if she went to the police. Indeed, he explained to her later when she asked, “How are you in so much shit?”, he texted to her, “I’m never ever going to see [my child] ever again, I need to get help, mom and dad are pissed at me. Everyone is mad at me.”
197. Again, he persisted that his need for help was for his depression. He emphasized he was “still very depressed” at the time of giving his evidence.
198. V.L. went on to say to C.L. via text that she was in “so much pain”. She sent to him a picture of the x-ray taken of her spine depicting the fracture. She commented, “I actually can’t believe all of this”, to which he responded, “I know I’m sorry babe [crying emoji] I really hate myself [crying emoji].”
199. He denied that he meant he was sorry for kicking her down the stairs. He disagreed that he was offering an apology for having done so.
200. He acknowledged that after the first text he sent to V.L., in which he stated, “What are you talking about? You fell”, he did not confront her again about what he contended

had happened to her. He stated that he had no idea if his relationship with her was over. Things had happened between them in the past and they managed to work things out.

201. When C.L.'s cross-examination resumed on January 21, 2025, Crown counsel drew his attention back to what he had texted to V.L. in the early morning hours of November 6, 2023. He told her, "I don't beat". He also stated, "I didn't kick". When V.L. corrected him and told him, "You kicked me. I felt your foot hit my lower back and my body bend. I can't believe you did that. It scared the shit out of me. My back is fucked", he clarified for her, "No you hit your head on the top of the stairs". When asked about the apparent contradiction - having earlier testified that she hit her head on the door at the bottom of the stairs - he agreed that he had texted something different to her.
202. He reiterated that he did not want to correct her about how she suffered her injuries. His apology was for the consequences of what happened. She was threatening him by saying she would tell his friends and go to the police. He did not wish to provoke her or start an argument with her.
203. He reiterated that he is not a good texter and "old fashioned". He prefers to talk as opposed to text. He disagreed that he ever apologized to her for causing her injuries.
204. When confronted that he texted to her, "I wish I could take this away", he stated he was talking about her pain. He agreed that he responded as such when she asserted to him, "You said you wouldn't hurt me." He had no explanation for why he had texted, "I'm in so much shit". He agreed that his text, "Everyone is mad at me", must mean that everyone was being "unfair" to him.
205. In short, C.L. asserted that all his texts were never intended to be an acknowledgement of having done anything wrong. He was feeling depressed and down. That is what he needed help for.
206. Under re-examination, C.L. reiterated that he continues to be depressed even on January 21, 2025, when he concluded giving his evidence.

207. He initially denied “beating” and “kicking”. Thereafter, as he texted to V.L., he did not want to repeat himself, nor did he want to relive the experience. Everything could have been avoided if he had only not made her jealous about Hailey and let her up the stairs.
208. Put simply, he did not know how to adequately express himself in talking to her and texting her.

Defence Position:

209. Defence counsel argued that the Court should not be able to find C.L. guilty beyond a reasonable doubt for having kicked V.L. down the stairs or for having punched a hole in her bedroom wall. The account she provided to the health professionals when she attended at the hospital to have her injuries treated was what happened to her. That was the truth. Instead, the Court received the false testimony of a vindictive woman who had a bad boyfriend, a partner who cheated on her and who badmouthed her.
210. Her story of how she fell down the stairs and suffered her injuries defied logic. Her testimony was that she was at least seven feet away from the top of the stairs when she felt the kick. She then hurtled through the air some 13 feet before her head struck the bulwark one must pass under to descend the stairs. The defence contended that this was physically impossible.
211. She was thereafter argumentative and evasive with defence counsel, which required the Court to admonish her.
212. Furthermore, she withheld evidence from the police. She only provided the text messages to police which supported her version of events. There were internal and external inconsistencies to it. Accordingly, her evidence could not be regarded as credible or reliable.
213. Regarding the hole in the bedroom wall, the defence reminded the Court that the Crown had not negated all other possible causes for the damage (see *R. v. Villaroman*, 2016 SCC 33 at paras. 26 – 30, 37 – 38, 41 - 42). V.L. could not establish that the hole was

not present before it was pointed out to her by C.L. She has children. There were other plausible explanations for the damage having been caused other than by C.L.

214. The defence contended that C.L.'s texts to V.L. proved nothing. They supplied context only to a toxic relationship. He initially denied via text that he had kicked her and caused her injuries in the immediate aftermath of what had occurred after she left his apartment. He gave his reason via text again why he did not continuously deny V.L.'s accusations that he had kicked her. He told her, "I don't want to keep repeating myself and relive it."

215. He offered a reasonable explanation for his inconsistency as to where she struck her head. He is "old-school" or "old-fashioned". He is not a good texter.

216. She was not balanced in the evidence she gave. She tried to paint herself in the most positive life while casting C.L. in the worst way.

217. Defence counsel listed a series of inconsistencies in V.L.'s testimony. Firstly, she initially denied that she said she would ruin his life. She was then impeached by the text she had sent to him telling him she would ruin him and fuck his life.

218. Secondly, she said that the hole in the wall occurred the same day as he burned out of her driveway. Her evidence then changed to these events happening on a different day.

219. Thirdly, she testified that on November 16, 2023, she had people over to her home for her birthday and had to go to bed early. To the contrary, her medical records revealed an account she gave to the doctors of not having any difficulty getting in and out of bed.

220. Fourthly, she testified that the argument between C.L. and her started because she refused to have sex with him after she saw what she believed was the symptom of an STD. Meanwhile, she agreed that she told nothing of the sort to police when she gave her statement. She also admitted neglecting to tell police that she was grabbed by the ankles and pulled from the bed.

221. Fifthly, she was told by police to provide all messages pertaining to the incident. Instead, she was selective in not turning over their full exchange. She suggested the

police were only interested in information she had which was “helpful to the case”. She wanted to be the judge of what was relevant based on her training as a legal assistant. In reality, she was molding the evidence to fit her agenda and deflect any blame for her injuries away from herself.

222. Sixthly, V.L. was challenged on whether C.L. texted to her and admitted having kicked her down the stairs, yet she could not point to the existence of any such text.
223. Regarding her animosity for C.L., the defence contended she had a motive to fabricate. She was jealous of his former girlfriends. She was angry because she thought he was lying to her about any ongoing relationships he had with them. She was furious with him for dumping out her marijuana. She was miffed that he was freeloading upon her. She was upset that he was badmouthing her. She was mad that he ordered her out of his apartment. In essence, she was acting on her word to ruin his life. She felt she was a woman scorned and she was letting C.L. feel her fury.
224. Consequently, the Court should not accept the incredibly flawed version of events V.L. provided. The Court could not be convinced beyond a reasonable doubt in C.L.’s guilt based on V.L.’s testimony and its numerous inconsistencies.
225. C.L., by contrast, gave a reasonably possible version of events. She was intoxicated at the time of her fall. He tried to stop her from going up to his apartment a second time to retrieve her marijuana. She hit her head on the door frame after slipping on a step roughly halfway up the staircase and knocked herself out. His explanation was both logical and coherent. It was corroborated by V.L.’s own version of events given immediately in the aftermath of the fall that she was not kicked. She fell.
226. Defence counsel urged the Court not to reject C.L.’s evidence, because he is a bad texter and old-school.
227. Alternatively, if the Court were prepared to accept the testimony given by V.L. as establishing C.L.’s guilt beyond a reasonable doubt, the Court could not find that the injuries she suffered constituted wounding or maiming. The injuries were more in the nature of an assault causing bodily harm.

Crown Position:

228. Crown counsel reminded the Court that to make out the offence of aggravated assault, the Crown must prove that the accused applied force intentionally without the other person's consent, or did so recklessly, or was wilfully blind to doing so. The element of wounding, maiming or disfiguring includes creating a dangerous situation capable of endangering the life of the person to whom the force is applied. There must be a real and not merely a negligible risk. Risk is key. The Crown relied on the case of *R. v. A.A.*, 2022 ONCA 639 at paragraph 12 – 13 to outline what constitute the *actus reus* and *mens rea* of aggravated assault.
229. However, this case ultimately must turn on the application of the steps set out in *W.(D.)*¹.
230. Regarding the mischief, V.L. testified that she heard a commotion upstairs after an argument broke out between C.L. and her. She had left the bedroom and went downstairs to avoid further confrontation with C.L. The hole did not exist before she left. It did when she returned.
231. C.L. put himself in the bedroom at the time he drew the hole to V.L.'s attention. His explanation, that he lifted the curtain and discovered the damage, was not credible. The Court should reject it. He was greatly upset by V.L. walking out on him. Her unwillingness to remain and talk through their problems caused him to erupt in anger. He then either punched or deliberately caused the hole in her bedroom wall.
232. V.L., the Crown contended, was far from the woman scorned. The defence theory, the Crown submitted, was quite rich as to her purported animosity for C.L. She was jealous but not vindictive.
233. V.L. was truthful about her own character flaws. She described herself as “not a perfect person”.
234. To the extent that she told S.S.L. about what happened to her, the Court could use it to rebut the defence of recent fabrication which C.L. was positing.

235. At its root, this is a ‘he says, she says’ case, but V.L. is genuine about what caused her injuries, whereas C.L. is in denial. She was angry to the point of being livid with him because he kicked her down the stairs and fractured her spine. She was in immense pain as a result.
236. She was reluctant to go to the police because she loved C.L. She had hinted that she would if he did not go for help. She also emphasized that she was not a “cop caller”.
237. Crown counsel disagreed that V.L. was argumentative and evasive with defence counsel. The warning the Court gave her addressed how she was contemplating where defence counsel was going with the questions he posed and not merely answering them directly.
238. The legal issue for the Court to determine, at its crux, was whether V.L. was kicked down the stairs or she fell. No issue exists as to the injuries she suffered.
239. She was clear in her version of events. She struck her head on the bulkhead at the top of the stairs. C.L. says she slipped on the stairs. It was an accident, but at no time did he describe it as such.
240. Crown counsel provided her own list for the rejection of C.L.’s evidence. Firstly, it was a toxic relationship that V.L. and C.L. shared, but it was not out of vengeance that V.L. spoke to the police. She went forward to the authorities because of what he did to her and what she reported truthfully to others that he did. He acknowledged that he needed help, but he clearly was unwilling to own up to his problem and to seek out some form of redress for it.
241. Secondly, C.L. was inconsistent in the explanation for why he told her to leave his home. He said he dumped out her marijuana because she was intoxicated, and he was concerned about her ability to drive. Yet, at the same time, he was insisting that she leave. This made no sense.

242. Thirdly, he agreed that he let her up into his apartment the first time to retrieve her weed, even though it was not in a consumable form. Still, he maintained his story that he did not want her driving with it. That was nonsense too.
243. Fourthly, he maintained that she hit her head on the side of the door frame as she turned and fell, whereas his text in the aftermath of the fall indicated to her that she struck her head at the top of the stairs. C.L. could provide no satisfactory explanation for this major inconsistency as to how she suffered this injury. The top of the stairs cannot mean the side of the door frame.
244. Fifthly, Crown counsel argued that some of the texts which C.L. sent to V.L. were akin to post-offence conduct. It was completely irrational he would be “in such shit” if she fell down the stairs, and it was an accidental fall. It does not follow that he was not wishing to engage her by correcting her on what she believed happened to her. His explanation that he needed help for depression is, in this light, even more incredible.
245. The Crown put forth instead that C.L.’s desire not to relive the incident was to forget it, avoid it or convince V.L. to forgive him for it.
246. In truth and in sum, his texts demonstrate that he was apologizing for the injuries he caused to V.L. by kicking her down the stairs. The remorse he was feeling was only for the pain she was suffering, as he insisted, was simply unbelievable testimony on his part.

The Issues

247. I must apply a *W.(D.)*, *supra*, analysis to the evidence adduced at C.L.’s trial. Clearly, the credibility of both C.L. and V.L. must be carefully assessed. Their reliability as historians for significant past events, although secondary, is worthy of some comment as well.
248. Essentially, in applying the law, I must acquit C.L. on the counts to which he entered pleas of not guilty, if I believe his testimony regarding the incidents in question after I assess the evidence as a whole.

249. If I do not believe him, but his evidence raises a reasonable doubt upon my assessment of the evidence in its totality, I must also find him not guilty on those two counts.

250. Even if I do not accept the evidence of C.L., nor does it raise a reasonable doubt, I must still be satisfied of his guilt beyond a reasonable doubt based on the evidence which I do accept, if I am to convict him of any offence for which he was tried.

The Law

251. Recently, the Supreme Court of Canada reflected upon some of the most fundamental principles of law to be applied in every criminal trial in the case of *R. v. Kruk* 2024 SCC 7 (CanLII). The Court held:

[59] The overarching principle of the presumption of innocence, enshrined in s. 11(d) of the *Charter*, and the correlative principle of the Crown’s burden of proof, must always govern the fact-finding process. The presumption of innocence — a “hallowed principle lying at the very heart of criminal law” (*R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 S.C.R. 103, at p. 119) — requires the Crown to bear the onus of proving all essential elements of the offence charged, beyond a reasonable doubt, before a conviction may be entered (*Osolin*) . . .

[61] The presumption of innocence also restricts how credibility is assessed in cases of conflicting testimony between defence and Crown witnesses. The analysis of testimony must never be treated as a contest of credibility, and triers of fact need not accept the defence’s evidence or version of events in order to acquit (*R. v. Van*, 2009 SCC 22, [2009] 1 S.C.R. 716, at para. 23; *R. v. W. (D.)*, 1991 CanLII 93 (SCC), [1991] 1 S.C.R. 742, at p. 757). The burden *never* shifts to the accused to establish their own innocence, and the onus always lies with the Crown to prove every essential element (*R. v. J.H.S.*, 2008 SCC 30, [2008] 2 S.C.R. 152, at para. 13).

[62] Reasonable doubt applies to credibility assessments such that if the evidence the Crown adduced does not rise to the level required of a criminal conviction, an accused cannot be found guilty simply because they are disbelieved (see *W. (D.)*). Some elements of the totality of the evidence may give rise to a reasonable doubt, even where much — or all — of the accused’s evidence is disbelieved. Any aspect of the accepted evidence, or the absence of evidence, may ground a reasonable doubt. Moreover, where the trier of fact does not know whether to believe the accused’s testimony, or does not know who to believe, the accused is entitled to an acquittal (*J.H.S.*, at paras. 9-13; *R. v. H. (C.W.)* (1991), 1991

CanLII 3956 (BC CA), 68 C.C.C. (3d) 146 (B.C.C.A.); *R. v. S. (W.D.)*, 1994 CanLII 76 (SCC), [1994] 3 S.C.R. 521, at p. 533; *R. v. Avetysan*, 2000 SCC 56, [2000] 2 S.C.R. 745, at para. 19).

252. Later, the Court guided trial judges of their roles in assessing the credibility and reliability of witnesses in the following passages:

[72] It is widely recognized that testimonial assessment *requires* triers of fact to rely on common-sense assumptions about the evidence. In *R. v. Delmas*, 2020 ABCA 152, 452 D.L.R. (4th) 375, at para. 31, *aff'd* 2020 SCC 39, [2020] 3 S.C.R. 780, the Alberta Court of Appeal observed that triers of fact may rely on reason and common sense, life experience, and logic in assessing credibility. In *R. v. R.R.*, 2018 ABCA 287, 366 C.C.C. (3d) 293, the same court held that triers of fact “must invariably fall back on their common sense, and their acquired knowledge about human behaviour in assessing the credibility and reliability of witnesses” (para. 6). Finally, in *R. v. S. (R.D.)*, 1997 CanLII 324 (SCC), [1997] 3 S.C.R. 484, this Court considered that the life experience of trial judges — though of course not a substitute for evidence, and subject to appropriately circumscribed limits — “is an important ingredient in the ability to understand human behaviour, to weigh the evidence, and to determine credibility”, and assists with a “myriad of decisions arising during the course of most trials” (para. 13). Reasoning about how people *generally* tend to behave, and how things *tend* to happen, is not only permissible, it is often a necessary component of a complete testimonial assessment.

[73] In turn, common-sense assumptions necessarily underlie *all* credibility and reliability assessments. Credibility can only be assessed against a general understanding of “the way things can and do happen”; it is by applying common sense and generalizing based on their accumulated knowledge about human behaviour that trial judges assess whether a narrative is plausible or “inherently improbable” (*R. v. Kiss*, 2018 ONCA 184, at para. 31 (CanLII); *R. v. Adebogun*, 2021 SKCA 136, [2022] 1 W.W.R. 187, at para. 24; *R. v. Kontzamanis*, 2011 BCCA 184, at para. 38 (CanLII)). Common sense underpins well-established principles guiding credibility assessment — including the now-universal idea that witnesses who are inconsistent are less likely to be telling the truth — and assists in assessing the scope and impact of particular inconsistencies. Reliability also requires reference to common-sense assumptions about how witnesses perceive, remember, and relay information, invoking generalizations about how individuals tend to present information that they are remembering accurately and completely, as opposed to matters about which they are unsure or mistaken. A trial judge may, for example, infer that a witness was credible yet unreliable because they appeared sincere but displayed indicia that tend to suggest an

unclear or uncertain memory (e.g., equivocation, phrases such as “hmm . . . let me see”, long pauses, or failure to provide much detail).

[81] Assessments of credibility and reliability can be the most important judicial determinations in a criminal trial. They are certainly among the most difficult. . . The trial judge, while remaining grounded in the totality of the evidence, is obliged to evaluate the testimony of each witness and to make determinations that are entirely personal and particular to that individual. Credibility and reliability assessments are also context-specific and multifactorial: they do not operate along fixed lines and are “more of an ‘art than a science’” (*S. (R.D.)*, at para. 128; *R. v. Gagnon*, 2006 SCC 17, [2006] 1 S.C.R. 621).^[4] With respect to credibility in particular, while coherent reasons are crucial, it is often difficult for trial judges to precisely articulate the reasons why they believed or disbelieved a witness due to “the complex intermingling of impressions that emerge after watching and listening to witnesses and attempting to reconcile the various versions of events” (*Gagnon*, at para. 20; see also *R. v. R.E.M.*, 2008 SCC 51, [2008] 3 S.C.R. 3, at para. 28; *R. v. G.F.*, 2021 SCC 20, [2021] 1 S.C.R. 801, at para. 81). The task is further complicated by the trial judge’s ability to accept some, all, or none of a witness’s testimony.

253. In *R. v. A.M.* 2014 ONCA 769, the Court of Appeal for Ontario offered these helpful tenets to be borne in mind by trial judges tasked with assessing the credibility and reliability of witnesses’ evidence as follows:

[8] Several basic principles inform our decision regarding the trial judge's reasons for judgment.

[9] First, every witness, irrespective of age, is an individual whose credibility and evidence should be assessed according to criteria appropriate to his or her mental development, understanding and ability to communicate: *R. v. W. (R.)*, 1992 CanLII 56 (SCC), [1992] 2 S.C.R. 122, [1992] S.C.J. No. 56, at p. 134 S.C.R.

[10] Second, no inflexible rules mandate when a witness' evidence should be evaluated according to "adult" or "child" standards. Indeed, in its provisions regarding testimonial capacity, the Canada Evidence Act, R.S.C., 1985, c. C-5 eschews any reference to "adult" or "child", preferring the terms "14 years or older" and "under 14 years of age". An inflexible, category-based system would resurrect stereotypes as rigid and unyielding as those rejected by the recent developments in our approach to children's evidence: *W. (R.)*, at p. 134 S.C.R.

[11] Third, despite this flexibility, there are some guiding principles. Generally, where an adult testifies about events that occurred when she was a child, her credibility should be assessed according to the criteria applicable to adult witnesses. However, the presence of inconsistencies, especially on peripheral matters such as time and location, should be considered in the context of her age at the time the events about which she is testifying occurred: *W. (R.)*, at p. 134 S.C.R. See, also, *R. v. Kendall*, 1962 CanLII 7 (SCC), [1962] S.C.R. 469, [1962] S.C.J. No. 27.

[12] Fourth, one of the most valuable means of assessing witness credibility is to examine the consistency between what the witness said in the witness box and what she has said on other occasions, whether or not under oath: *R. v. G. (M.)*, 1994 CanLII 8733 (ONCA), [1994] O.J. No. 2086, 93 C.C.C. (3d) 347 (C.A.), at p. 354 C.C.C., leave to appeal to S.C.C. refused [1994] S.C.C.A. No. 390. Inconsistencies may emerge in a witness' testimony at trial, or between their trial testimony and statements previously given. Inconsistencies [page 540] may also emerge from things said differently at different times, or from omitting to refer to certain events at one time while referring to them on other occasions.

[13] Inconsistencies vary in their nature and importance. Some are minor, others are not. Some concern material issues, others peripheral subjects. Where an inconsistency involves something material about which an honest witness is unlikely to be mistaken, the inconsistency may demonstrate a carelessness with the truth about which the trier of fact should be concerned: *G. (M.)*, at p. 354 C.C.C.

[14] Fifth, a trial judge giving reasons for judgment is neither under the obligation to review and resolve every inconsistency in a witness' evidence, nor respond to every argument advanced by counsel: *R. v. M. (R.E.)*, [2008] 3 S.C.R. 3, [2008] S.C.J. No. 52, 2008 SCC 51, at para. 64. That said, a trial judge should address and explain how she or he has resolved major inconsistencies in the evidence of material witnesses: *G. (M.)*, at p. 356 C.C.C.; *R. v. Dinardo*, [2008] 1 S.C.R. 788, [2008] S.C.J. No. 24, 2008 SCC 24, at para. 31.

[15] Sixth, prior consistent statements of a witness are not admissible for their truth: *R. v. Stirling*, [2008] 1 S.C.R. 272, [2008] S.C.J. No. 10, 2008 SCC 10, at para. 7. Mere repetition of a story on a prior occasion does not make the in-court description of the events any more credible or reliable: *R. v. Curto*, [2008] O.J. No. 889, 2008 ONCA 161, 230 C.C.C. (3d) 145, at paras. 32, 35; *R. v. Ay*, 1994 CanLII 8749 (BC CA), [1994] B.C.J. No. 2024, 93 C.C.C. (3d) 456 (C.A.), at p. 471 C.C.C.

254. In a very recent case I decided, *R. v. McLaren* 2023 ONCJ 92 (CanLII), I adverted, as I must, to the meaning of “reasonable doubt”. I had the following to say:

181. The standard of proof beyond a reasonable doubt is an age-old principle of criminal law in Canada and virtually every other common law jurisdiction. Triers of fact must be ever conscious of the high burden of proof placed upon the Crown, if ever the accused’s right to be presumed innocent is to be rebutted.

182. Recently, my colleague, Brochu J., in *R. v. Hawryluk*, (unreported), offered these helpful commentaries on the meaning of reasonable doubt:

[39] Like every person accused of a criminal offence, Mr. Hawryluk begins this trial presumed to be innocent of the offence with which he is charged. That presumption remains intact unless and until the Crown proves beyond a reasonable doubt that he is guilty. It is the Crown that bears the onus of proving the essential elements of the offence beyond a reasonable doubt. That onus never shifts to the accused.

[40] Intermingled with the presumption of innocence is the standard of proof required to displace that presumption. To secure a conviction in a criminal case, the Crown must establish each essential element of the charge against the accused beyond reasonable doubt. This standard of proof is very stringent. It is a standard far beyond the civil threshold of proof on a balance of probabilities.

[41] The expression “proof beyond a reasonable doubt” has no precise definition, but it is well understood. The Supreme Court of Canada outlined a suggested model jury charge in *R. v. Lifchus*, 1997 CanLII 319 (SCC), [1997] 3 S.C.R. 320. This is the definitive guide for criminal trial courts in Canada. It is worth setting out here verbatim:

* The term “beyond a reasonable doubt” has been used for a very long time and is a part of our history and traditions of justice. It is so engrained in our criminal law that some think it needs no explanation, yet something must be said regarding its meaning.

* A reasonable doubt is not an imaginary or frivolous doubt. It must not be based upon sympathy or prejudice. Rather, it is based on reason and common sense. It is logically derived from the evidence or absence of evidence.

* Even if you believe the accused is probably guilty or likely guilty, that is not sufficient. In those circumstances you must give the

benefit of the doubt to the accused and acquit because the Crown has failed to satisfy you of the guilt of the accused beyond a reasonable doubt.

* On the other hand you must remember that it is virtually impossible to prove anything to an absolute certainty and the Crown is not required to do so. Such a standard of proof is impossibly high.

* In short if, based upon the evidence before the court, you are sure that the accused committed the offence you should convict since this demonstrates that you are satisfied of his guilt beyond a reasonable doubt.

[42] Three years later, in *R. v. Avetysan*, 2000 SCC 56 (CanLII), [2000] 2 S.C.R. 745, the Supreme Court of Canada clarified at para. 13 that:

In situating the criminal standard of proof, “it falls much closer to absolute certainty than to proof on a balance of probabilities”: Starr, at para. 242, per Iacobucci J.

255. These principles of law addressed above apply equally in their entirety to this case.

Analysis

Do I believe C.L.?

256. I do not believe C.L.’s evidence for several reasons. I shall elaborate why.

257. Firstly, it was inconsistent on a core aspect of how V.L. fell down the stairs of his apartment. His testimony had her somehow turning and striking her head on the downstairs’ stairway door, rather than what he originally texted to her about the injury to her head (i.e. that she struck it on the top of the stairs). He had no explanation for why he told her one thing initially and another later about the cause for the bump to her head. I find that he was untruthful with the Court in contriving a confrontation with V.L. on the stairway up to his apartment to explain away why she suffered injuries she did and how.

258. Secondly, C.L. was not at all credible about why he testified he needed “help”. I find it was not for “depression”. It was his explosive, uncontrollable anger which he needed to address. He told V.L. he would see someone about it. He thought it may persuade her

not to go to the police. If he had sought some form of counselling, he may well have convinced her not to contact the authorities. However, C.L. lacked any real motivation to change his ways, and to deal with his jealousy and volatility.

259. Thirdly, it made no sense that he was kicking V.L. out of his apartment the night of her fall, but at the same time, he was preventing her from taking her marijuana with her. I find that he made no offer to find her a ride. He could not drive himself due to his own level of intoxication. He just wanted her out of his home and away from him. The kick, punch or push to her back as she approached the stairs was likely in retaliation for throwing his weed at him, which landed in the shower, after she returned upstairs. It incited his anger. It inflamed him. I am absolutely convinced C.L. caused V.L. to fall down the stairs.

260. Fourthly, C.L. could not articulate why he was, as he put it, “in so much shit”, and why everyone was mad at him. This is about as close to a confession to his crime that C.L. could make for causing V.L. to fall down the stairs.

261. Fifthly, I accept V.L.’s testimony regarding C.L.’s changing explanations for the hole in her bedroom wall. V.L. really had no axe to grind. In truth, she did not care about the damage to her bedroom wall. It was the least of her worries in deciding to go to the police to come to Court to speak of how C.L. had hurt her.

Does C.L.’s evidence raise a reasonable doubt?

262. In my exercise of fully and closely examining the evidence given by C.L., it left me no room for believing any aspect of it which would cause me to reasonably doubt his guilt for either offence for which he was tried.

On the basis of the evidence which I accept, am I satisfied beyond a reasonable doubt in the guilt of C.L.?

263. Regarding the mischief charge, I believe V.L.’s testimony that C.L. gave a vacillating story for the cause of the hole in her bedroom wall. On the contrary, V.L. was

consistent. She looked surprised, on C.L.'s own evidence, the instant she saw the hole. Her surprise arose because the hole did not exist before she left her bedroom.

264. Specifically, I find that C.L. started recklessly moving things, hers and his own, including his dog crate, to collect his belongings before leaving her home. He either intentionally or recklessly made the hole in her wall.
265. I disbelieve C.L.'s testimony that he decided, after a heated argument with V.L., to busy himself with cleaning her room. It strains common sense, even considering his peanut allergy, that this would be a time for him to choose to tidy up.
266. I accept V.L.'s evidence that she went upstairs after hearing the commotion and discovered freshly caused damage. C.L. was the only person in the room at the time.
267. I conclude that there are no reasonable alternative inferences to be drawn other than that C.L. caused the damage, either intentionally or recklessly, in his angry state while collecting his things. The Crown was under no obligation to disprove every possible conjecture which might be consistent with innocence.
268. Regarding the aggravated assault charge, I find that C.L. and V.L. smoked marijuana, and possibly consumed alcohol as well, during the late evening hours of November 5 and early morning hours of November 6, 2023. An argument erupted between them in bed over her concern that he may have contracted an STD from another woman.
269. By his own admission, C.L. pulled V.L. from his bed by the ankles because he wanted her to leave immediately. She gathered her things, left his apartment and realized on arrival at her vehicle that she had forgotten her remaining marijuana in the bathroom of his apartment.
270. C.L. let her in to retrieve her marijuana. When they were both in the bathroom, he dumped hers out. In retaliation, she threw his at him striking him in the leg and causing the jar, which contained his marijuana, to land in the shower. All the while they were exchanging words with one another. She was mad. Most definitely, so was he.

271. I reject C.L.'s explanation that he did not want V.L. to be consuming marijuana while driving. What angered C.L. was V.L.'s willingness to fight back. It prompted his fury and his decision to visit harm upon her.
272. She had turned to leave and had proceeded towards the stairs. He followed.
273. He then kicked, punched or pushed V.L. in the back causing her to fall down the stairs of his apartment. The mechanism of how he intentionally applied force to her does not matter. She fell because of what he did to her.
274. The incident happened quickly while V.L. had her back turned to C.L. I find V.L. was honest in telling the Court that C.L. exerted a force upon her that caused her to fall. It felt to her like a kick. She knew she did not slip or fall accidentally.
275. V.L. could be inaccurate as to how far away she was from the top of the stairs before she felt the pressure on her back. She had no reason to measure her steps. What she was sure of and what this Court accepts is that C.L. caused her to fall.
276. I find that C.L., in the horror of his realization what he had just done to V.L., covered her mouth and nose to prevent the neighbours from hearing what she was saying. He was attempting to prevent the detection of his crime, for police to have been called to investigate. In the very moment of the event, V.L. was calling C.L. out immediately for what he is, a "wife beater".
277. She suffered a visible contusion to her forehead, bruising to her buttocks, minor abrasions to her left elbow and right hand, and a mild L1 vertebral compression fracture as a result of being propelled down the stairs. The photographs depicted the injuries. They were not the subject of any real dispute at C.L.'s trial.
278. C.L.'s 'get well' letter in the bucket and his numerous text exchanges with V.L. told the real story. I find that his promise "to try to do better" and his copious apologies were a clear acknowledgement of his responsibility for hurting her. The letter and the texts, read cumulatively and in conjunction with one another, made it plain that C.L. knew that he needed help for his anger and his capacity to act out violently. If V.L. had

simply fallen, there would have been no reason for C.L. to “try to do better”. Without explicitly admitting his guilt, he acknowledged that what he did to her was dreadfully wrong. He probably was, after the fact, genuinely remorseful, but at the same time, he was attempting to placate her and keep her from reporting what he had done to police.

279. I find that initially V.L. was trying to protect C.L. as the perpetrator of an assault upon her. She was lonely and desperate for a relationship with a man after several years of being single. She lied to medical staff when she presented at the hospital in Arn prior to seek treatment for her injuries. She was willing to see if she could forgive C.L. if he could demonstrate to her that he was committed to change.

280. When it became apparent to V.L. that C.L.’s continuing promises to her to seek help were hollow ones, only then did she make the decision to go and report what he had done to her to the authorities. In truth, all C.L. really wanted was for V.L. to keep quiet about it.

281. I cannot accept, as urged upon me by defence counsel, that hatred and animus lay at the root of V.L.’s motivation for testifying as she did. V.L. did not fabricate the incident which led to her fall. On the contrary, she wanted to see movement and change from C.L., but it did not materialize. He did not seek counselling. He did not step up to accept responsibility for what he had done to her. If he had, she may well have forgiven him, and no criminal charges may have been laid.

282. I can conclude that V.L. is a fiery woman. Her texts speak well to how she was not one to take things lying down. However, she did not tell a tall tale to “ruin” C.L. She was calling it like it is.

283. The person who was prepared to invent a story and fabricate was C.L. He told an elaborate lie, that in an intoxicated state, she slipped and fell on her way up the stairs. This would lend credence to his version of events. It was pure hogwash that he was only sorry for not letting her up the stairs, and not correcting her on how she fell, because he did not want to instigate her and incur her wrath. None of that would have caused him

to be disappointed in himself and to hate himself. He hated himself and was disappointed in himself because he knew what he had done to her and what he is.

284. I do not believe that he noticed after the fact that his stairs were wet and sandy. Why would he even study them so minutely?
285. Most fundamentally, the physics of how he says she struck her head defies all logic. If she slipped, as she was attempting to get up his apartment stairs, she must have fallen forward. I cannot for an instant understand how she could have turned a full 180° to collide with the door frame and to suffer a bruise to her forehead as a result. That would come to my mind, be near impossible.
286. What her head struck is what he initially texted to her - “the top of the stairs”. The inconsistency between his trial evidence and his earlier statement is irreconcilable. It lays plain the lie he told. It has nothing to do with him being a “terrible texter”.
287. In essence, C.L. gave what the Court considered to be almost a pure confession when V.L. challenged him via text on November 8, 2023 by V.L. with her desire to ask “some of your other exs if you ever put hands on them... cause you have mentally fucked me up”, and he answered with . . . “I’m sorry... I hate myself... This is my fucking fault; I did this.”
288. C.L. considered himself as well to be “in so much shit” because he knew V.L. was debating whether to contact police over the incident.
289. In sum, I am absolutely convinced that C.L. lost control of his temper again and applied force to V.L. causing her to fall down the stairs during the early morning hours of November 6, 2023. The Canadian Oxford Dictionary defines “to wound” as meaning “to inflict physical injury, typically a break in the structure of an organ or tissue, caused by an external agent. Anyone who propels a person down a full flight of stairs connecting one level of the building with another endangers the life of that individual.
290. In this case, the “external agent” was C.L. He inflicted “physical injury” upon V.L. She broke her tailbone after he intentionally applied force to her causing her to fall down the

stairs of his apartment. While this does not constitute what would typically be considered “a break in the structure of an organ or tissue”, a spinal fracture is “a break”. In more common parlance, an animal is considered wounded if it suffers, for example, a broken leg.

291. Accordingly, I find that C.L. wounded V.L. by causing her to suffer an L1 vertebral fracture. He thereby committed an aggravated assault upon her.

Conclusion

292. I must comment, as I have in the past, on the growing importance of cell phone communications in the determination of criminal cases. While I appreciate that cell phones contain an abundance of personal information, and I understand the reluctance of police to ask of the complainant to hand over the phone to allow for a fulsome, objective, independent, investigative review of the relevant contents, the whole story goes uncovered unless officers go to the bother of inconveniencing complainants to that extent. So many cases these days turn on an exchange of those communications.
293. Crown and defence counsel adduced much *viva voce* evidence referring both C.L. and V.L. to their exchange of texts between November 6 and 17, 2023. Insofar as they were proffered for a legitimate purpose, such as
- a) drawing to the Court’s attention a prior inconsistent statement,
 - b) offering a reflection on the mental state of either V.L. or C.L., or
 - c) undermining the reliability of one or the other’s evidence due to their state of intoxication,
- they were admissible pieces of evidence. Otherwise, the texts spoke for themselves.
294. In this case, I was unfortunately left with an incomplete, yet nevertheless, sufficient overview of the texts shared by C.L. and V.L. to make fair, logical, and conclusory inferences therefrom on the core issue of C.L.’s innocence or guilt. Again, the texts, read as a whole, spoke loudly, in my view, to C.L.’s guilt.

295. The Crown invited me to regard the texts as “post-offence conduct”. It left me uneasy to take such an approach. Firstly, I do not like the term as it has come to be used in Canadian jurisprudence. I prefer, in weighing this particular rubric of evidence, to characterize it as “after-the-fact conduct” or “post-event conduct”. Triers of fact should be careful never to assume an “offence” has been committed. To do so may risk shifting the ultimate burden of proof from the Crown.

296. Here, the texts revealed C.L.’s conscience and state of mind regarding the events which transpired between V.L. and him during the early morning hours of November 6, 2023 (see *R. v. White*, 2011 SCC 13 (CanLII) at paras. 22 – 24; *R. c. St. Jean*, 2025 QCCA at para. 69). They were quite telling.

297. For this reason and the others given above, I must find C.L. guilty of doing mischief to the bedroom wall of V.L. and committing an aggravated assaulting upon her.

DATED: March 20, 2025

March, M.G., J.

Endnotes:

¹ *R. v. W.(D.)*, [1991] 1 SCR 742 (see page 758)

A trial judge might well instruct the jury on the question of credibility along these lines:

First, if you believe the evidence of the accused, obviously you must acquit.

Second, if you do not believe the testimony of the accused but you are left in reasonable doubt by it, you must acquit.

Third, even if you are not left in doubt by the evidence of the accused, you must ask yourself whether, on the basis of the evidence which you do accept, you are convinced beyond a reasonable doubt by that evidence of the guilt of the accused.